

From: Lee Connor
To: [Secretary](#)
Cc: [Butch Connor](#); [EDWARD Greenberg](#)
Subject: Docket no. 17-04, Regulatory Reform Initiative
Date: Wednesday, July 5, 2017 2:44:31 PM

Gentlemen:

My name is Louis "Lee" Connor, President of John S. Connor, Inc and I respectfully submit these comments with regard to the above referenced docket.

Our company is celebrating its 100th anniversary this year in the logistics business. We are freight forwarders, NVOCC, customs brokers and vessel agents with 6 offices and 103 employees. We operate under Federal Maritime License no. 496NF. We work with a world-wide network of partners to enable us to provide in country service and attention to meet the needs of our customers. We are also members of the National Customs Brokers and Forwarders Association of America (NCBFAA).

One area we believe should be considered for regulatory reform are Negotiated Rate Arrangement (NRAs). Up to now we not a user off NRAs nor NSAs largely because of the limitations/restrictions associated with these agreements and, frankly, our uncertainty as to how best to use them and remain compliant.

We believe that if shipper and OTI are to negotiate such agreements we should not be restricted from including any number of terms which can be addressed in an arms length agreement for the protection and clear understanding of all parties. We see no sound reason for NRAs not to include such items as minimum volumes, credit terms and appropriate surcharges which could occur. Furthermore, we strongly believe we should have the flexibility to amend these agreements as necessary based on the highly volatile market conditions which can and do arise in our business. Why not provide for these basic terms in the NRA rather than be required to amend an NSA or tariff with all the attending time and expense currently required to file such terms? We see no good, productive reason.

If the restrictions on NRAs were lifted we would be much more comfortable using them. Our customers would be better served by having a clear understanding of the terms (keep in mind the tariffs are really never accessed as far as we can tell) and our resources would be used more efficiently.

With respect to Negotiated Service Arrangements (NSA), we have found them too cumbersome generally and not applicable as a benefit to us or our customers. We believe that amending the NRA rules to provide for additional terms could allow for the elimination of the need for NSAs and still achieve the basic goals. As stated it is still our belief that the filing of public tariffs serves no useful purpose for the shipping public. In today's fast moving world of rate volatility, carrier changes, terminal congestion issues, etc. it is more important than ever that OTIs like us be as nimble and flexible as possible in order to best serve the shipping public.

A fact that seems to support our view is the Commission's recent decision to allow amendments to be filed after the fact. This seems to be an acknowledgment of the limited, if any, value of these public filings.

For the record we would also like to state that we fully support the long held positions of NCBFAA in matters related to tariff filing in general. We encourage and request the Commission to take this opportunity to consider the elimination of tariff filing for NVOCCs or, at a minimum, lift the restrictions on the use of NRAs and the filing of NSAs.

Thank you for the opportunity to present our views.

Respectfully submitted,

Lee Connor, President

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Our customers are our #1 priority. We want to enhance your experience with our company so please continue to let us know how we are doing and where we can improve our service to you by sending an e-mail to surveyteam@jsconnor.com. Your feedback is very important to us and will be used to strengthen our performance.

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